

ELIZABETH II



1974 CHAPTER xviii

An Act to authorise the disposition by the Secretary of State for the Environment to the British Airports Authority of certain sections of the Longford River; and for other purposes. [17th July 1974]

WHEREAS the British Airports Authority (hereinafter in this Act referred to as "the Authority") were constituted by the Airports Authority Act 1965 and there were transferred to the Authority by that Act the aerodromes at Heathrow, Gatwick, Stansted and Prestwick and the function of the Authority as laid down in that Act is to provide at the said aerodromes and at any other aerodromes provided or acquired by them such services and facilities as are in their opinion necessary or desirable for the operation of the aerodromes and in carrying out that duty the Authority are required to have regard to the development of air transport and to efficiency, economy and safety of operation: 1965 c. 16.

And whereas Heathrow Aerodrome is traversed by a water-course known as the Longford River which, being an ancient and

1851 c. 42.

in part continuing source of water for the Royal Parks at Hampton Court, forms part of those parks and is managed by the Secretary of State for the Environment under the powers conferred by section 22 of the Crown Lands Act 1851:

And whereas the powers conferred by the said section 22 on the Secretary of State do not include any powers of alienation:

And whereas it is expedient and in the public interest to authorise the Secretary of State to lease to the Authority the land comprising the sections of the Longford River within or adjacent to the boundaries of Heathrow Aerodrome or to grant to the Authority interests in, on or over such land:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the British Airports Authority (Longford River) Act 1974.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires—

“ the Authority ” means the British Airports Authority;

“ the Secretary of State ” means the Secretary of State for the Environment;

“ the scheduled lands ” means the lands described in the Schedule to this Act which are for the purposes of identification shown coloured red on a map signed in quadruplicate by the Rt. Hon. the Earl of Listowel, the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred, and deposited respectively in the Office of the Clerk of the Parliaments, House of Lords, in the Private Bill Office of the House of Commons, with the Secretary of State for the Environment and the secretary of the Authority but if there is any discrepancy between the description of the lands in the said Schedule and the lands as shown on the said map the former is to prevail.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as amended, extended or applied by any subsequent enactment including this Act.

3. Notwithstanding anything in any enactment the Secretary of State may lease to the Authority the whole or any part of the scheduled lands or may grant to the Authority rights in, on or over such lands on such terms and conditions as he may think fit and as may be agreed by the Authority.

4. All costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Authority.

SCHEDULE

DESCRIPTION OF THE SECTIONS OF THE LONGFORD RIVER WITHIN OR ADJACENT TO THE BOUNDARIES OF HEATHROW AERODROME

1.—(a) The section of the bed and banks of the Longford River in the London borough of Hillingdon lying between National Grid reference points TQ 04767665 and TQ 04837624.

(b) The section of the bed and banks of the Longford River partly in the London borough of Hounslow and partly in the district of Spelthorne in the county of Surrey lying between National Grid reference points TQ 05627529 and TQ 08357423.

2. References in this Schedule to the bed and banks of the Longford River are to be construed as references to the bed and banks of the river in its original course and include in relation to the banks so much of the adjoining land as is managed by the Secretary of State and where part of the river has been diverted and the bed filled in that part is to be deemed still to form part of the river.



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